

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION

INTERIM APPLICATION NO. 3156 OF 2024
IN
INCOME TAX APPEAL (L) NO. 29305 OF 2024

Principal Commissioner of Income
Tax 5, Mumbai

...Applicant/Appellant

Versus

Ace Property Developers
Private Limited AY 2009-10

...Respondent

Mr Vikas T Khanchandani, for applicant/appellant.

CORAM: G. S. KULKARNI &
DR. NEELA GOKHALE, JJ.

DATE: 11 SEPTEMBER 2026

P.C.

1. Despite service of notice, none appears for the Respondent. An affidavit of service to that effect is placed on record.

2. We have heard learned counsel for the Applicant/Appellant on this interim application which is filed praying for condonation of delay in filing the aforesaid appeal under Section 260A of the Income Tax Act. The delay which is sought to be condoned is of 55 days.

3. In the aforesaid circumstances, having perused the memo of the application and considering the period of delay not being very gross, in our opinion, the reasons as set out certainly provide for an appropriate justification and a sufficient cause shown by the applicant in regard to the delay in filing the appeal. It is hence in the interest of justice that the delay is condoned.

4. The application is hence allowed in terms of prayer clause (a). Interim application stands disposed of in the above terms. No costs.

5. Let the office objections, if any, be removed within a period of 8 weeks from today.

(DR. NEELA GOKHALE, J)

(G. S. KULKARNI, J.)